

### **Background**

Plaintiff filed Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration and Memorandum, all filed on 1/21/26.

Plaintiff attached the particular facts at issue in their Exhibit A to their Declaration, entitled 'Requests For Admissions, Set No. ONE.'

Plaintiff attached a proof of service, indicating email service to Defendant's attorney of record on the same date.

No response has been filed by the Defendant.

### **Analysis**

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

**The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.**

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

### **Disposition**

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff shall prepare and submit the Order.

**13. 9:00 AM CASE NUMBER: L25-09232**

**CASE NAME: CAPITAL ONE N.A. VS. RACHEL RUMSEY**

**\*HEARING ON MOTION IN RE: SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION  
FILED BY: CAPITAL ONE N.A.**

**\*TENTATIVE RULING:\***

### **Background**

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

### **Analysis**

Mail service was completed at an address for the attorney of Defendant.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$3,323.11, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$0.

Costs are \$358.61, according to a memo filed by the Plaintiff.

### **Disposition**

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$3,681.72.

Plaintiff shall prepare and submit an Order and Judgment.

**14. 9:00 AM CASE NUMBER: L25-12915**  
**CASE NAME: JPMORGAN CHASE BANK, N.A. VS. JEREMY**  
**\*HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS**  
**FILED BY: JEREMY, JEREMY**  
**\*TENTATIVE RULING:\***

### **Background**

Defendant filed a Motion to Quash the Summons on 1/26/26, arguing that service of process was invalid. Specifically, Defendant claims that he was never personally served.

Plaintiff opposes the Motion, arguing that personal service was effected by a registered process server, as reflected in the filed Proof of Service. Plaintiff also seems to allude to substitute service in their response, but the Proof of Service reflects personal service only, and there is no evidence that Plaintiff subsequently mailed process documents to the Defendant.

### **Analysis**

A defendant can move to quash service of the summons if service of the service is not valid. *Code of Civil Procedure Section 418.10(a)(1)*. A defendant's actual knowledge of the action does not dispense with the statutory requirement of service of the summons. *Kappel v. Bartlett* (1988) 200 CA3d 1457, 1466.